Employment Contract

This Comprehensive Employment Contract (the “Contract”) is made and entered into effective as of November 29, 2025 (the “Effective Date”),

BETWEEN:

Sunrise DataWorks Pvt. Ltd., a company incorporated under the provisions of the Companies Act, 2013, having its registered office at Bangalore(hereinafter referred to as the “Company” or “Employer”, which expression shall, where the context so requires, include its successors, permitted assigns, and affiliates);

AND:

Rohit Malhotra, son of Vijay Malhotra, residing at Bangalore. Aadhaar Number 795158551215 (hereinafter referred to as the “Employee”, which expression shall, where the context so requires, include his legal heirs, executors, administrators, and permitted assigns).

The Company and the Employee may hereinafter be referred to individually as a “Party” and collectively as the “Parties”.

1. Engagement and Role

1.1. **Position:** The Company hereby engages the Employee, and the Employee hereby accepts engagement, as a **Junior Backend Developer**. This position is based out of the Company’s offices located in Bangalore. The Employee shall report to the designated manager or such other person as may be appointed by the Company from time to time.

1.2. **Duties and Responsibilities:** The Employee shall perform all duties and responsibilities inherent in the role of Junior Backend Developer, and such other duties as the Company may assign or delegate from time to time, which may include tasks outside the Employee’s primary role description without entitlement to additional remuneration. The Employee shall use his best endeavors to promote the interests of the Company and shall devote his whole working time and attention to the performance of his duties hereunder.

1.3. **Performance Standards:** The Employee shall at all times maintain the highest standards of professional conduct and performance. The Company will conduct periodic performance reviews, the outcomes of which may influence compensation, promotion, or continued employment.

2. Working Hours and Availability

2.1. **Standard Working Hours:** The Employee is required to work a minimum of **twelve (12) hours per day**. The standard working days shall be Monday through Saturday, inclusive of public holidays, as determined by the Company's operational needs. The Company reserves the right to alter working hours, days, and shifts as required.

2.2. **Overtime:** Compensation for hours worked in excess of the stipulated twelve (12) hours per day or beyond standard working days is explicitly not provided. All work performed is considered part of the agreed-upon compensation package.

2.3. **Availability:** The Employee agrees to be available for work duties as required by the Company, which may include responding to urgent requests or attending to critical tasks outside of the scheduled working hours or days, with no entitlement to additional compensation.

2.4. **Monitoring of Devices:** The Employee acknowledges and agrees that the Company reserves the right, without prior notice, to monitor and access any data, communications, and activities conducted on Company-owned devices, as well as any personal devices used, in whole or in part, for Company business or connected to the Company's network. This includes, but is not limited to, emails, internet browsing history, software usage, and files stored.

3. Compensation and Deductions

3.1. **Base Salary:** The Employee shall receive a gross monthly salary of **INR 40,000/- (Rupees Forty Thousand Only)**. This salary is inclusive of all allowances and benefits unless otherwise specified herein.

3.2. **Training Recovery Fee:** For the first three (3) calendar months of employment, a mandatory deduction of **sixty percent (60%)** of the gross monthly salary shall be applied as a "Training Recovery Fee". This deduction is to offset the costs of comprehensive training, onboarding, and resources provided by the Company during the initial phase. The net salary disbursed to the Employee during this period will reflect this deduction.

3.3. **Payment Schedule:** Salary will be paid on or before the 5th working day of each succeeding month via bank transfer to the Employee's nominated account.

3.4. **Statutory Deductions:** Applicable statutory deductions, including but not limited to Income Tax (TDS), Employees' Provident Fund (EPF), and Employee State Insurance (ESI) as mandated by Indian law, will be deducted from the gross salary.

3.5. **Other Deductions:** The Company reserves the right to deduct any amounts owed by the Employee to the Company from the Employee's salary, including but not limited to amounts related to damages, fines, penalties, or unpaid advances, as per the terms of this Contract and applicable laws.

4. Probation Period

4.1. **Duration:** The Employee shall undergo a probation period of **six (6) months**, commencing from the Effective Date. This period is subject to satisfactory performance and adherence to Company policies.

4.2. **Review and Confirmation:** During the probation period, the Employee's performance and conduct will be regularly reviewed. The Company, in its sole discretion, may extend the probation period, confirm the Employee's employment, or terminate the employment at the end of the probation period without assigning any reason.

5. Benefits and Leave

5.1. **Statutory Benefits:** The Employee shall be entitled to statutory benefits such as Provident Fund and Gratuity, as per applicable Indian laws, subject to eligibility criteria and deductions.

5.2. **Leave Entitlements:** The Employee shall be entitled to annual leave, sick leave, and casual leave as per the provisions of the Factories Act, 1948 and applicable state laws. All leave applications must be submitted in advance and are subject to approval by the management, considering business exigencies.

5.3. **Holiday Policy:** The Company observes public holidays as declared by the central and state governments. However, the Employee may be required to work on holidays if deemed necessary for business operations, in which case compensatory off or overtime (if applicable and not excluded by this contract) may be granted at the Company's discretion.

6. Confidentiality

6.1. **Definition of Confidential Information:** For the purpose of this Contract, "Confidential Information" shall mean any and all non-public information, trade secrets, proprietary knowledge, data, know-how, business plans, financial information, customer lists, software code, algorithms, technical specifications, marketing strategies, and any other information of a sensitive or proprietary nature, whether in written, oral, electronic, or any other form, relating to the Company, its clients, its business, or its affiliates.

6.2. **Obligation of Confidentiality:** The Employee shall, during the term of employment and at all times thereafter, keep strictly confidential all Confidential Information and shall not, directly or indirectly, disclose, publish, or use any Confidential Information for any purpose whatsoever other than for the benefit of the Company in the course of performing his duties.

6.3. **Return of Information:** Upon termination of employment for any reason, or at any time upon request by the Company, the Employee shall promptly return all Confidential Information

and all copies thereof, including all documents, notes, data, and other materials, in his possession or control.

7. Intellectual Property Rights

7.1. **Ownership:** The Employee agrees and confirms that all intellectual property, inventions, discoveries, designs, developments, improvements, software, code, algorithms, documentation, ideas, works of authorship, and other materials or creations developed, conceived, reduced to practice, or generated by the Employee, individually or jointly with others, during the term of his employment, and which (a) relate to the business, research, development, or activities of the Company, or (b) are created using the Company's facilities, equipment, or proprietary information, shall be the sole and exclusive property of the Company. This includes, without limitation, all intellectual property rights arising under patent, copyright, trademark, trade secret, or other laws.

7.2. **Assignment:** The Employee hereby irrevocably assigns and transfers to the Company all rights, title, and interest in and to any and all such intellectual property as described in clause 7.1.

7.3. **Side Projects:** Notwithstanding any other provision, any and all projects, software, code, or inventions created by the Employee, whether during working hours or outside of working hours, using Company resources, or during the term of employment, shall be deemed to be the exclusive property of the Company.

7.4. **Further Assurances:** The Employee shall execute all such documents and do all such acts and things as may be reasonably required by the Company to vest in the Company the full benefit of the intellectual property rights assigned or to be assigned hereunder, and to assist the Company in obtaining, enforcing, and maintaining its rights therein.

8. Termination of Employment

8.1. **Termination by Company:** The Company reserves the absolute right to terminate the Employee's employment at any time, with or without cause, and without prior notice or compensation in lieu thereof, by providing written notification to the Employee. Upon such termination, the Company's sole obligation shall be to pay the salary accrued up to the effective date of termination.

8.2. **Termination by Employee (Resignation):** If the Employee wishes to resign, they shall provide the Company with a written notice of **one hundred and twenty (120) days** (the "Notice Period"). The Company may, at its sole discretion, waive the Notice Period or a portion thereof. Should the Employee fail to serve the full Notice Period, or if the Company deems the departure disruptive, the Employee shall be liable to pay a penalty to the Company equivalent to **INR**

3,00,000/- (Rupees Three Lakhs Only), or such other amount as determined by the Company, to cover recruitment, training, and operational disruption costs.

8.3. **Immediate Termination:** The Company may terminate the Employee's employment with immediate effect, without notice or compensation, in cases of gross misconduct, willful insubordination, breach of any term of this Contract, violation of Company policies, fraud, theft, or any other act that causes material harm to the Company.

8.4. **Return of Company Property:** Upon termination of employment for any reason, the Employee shall immediately return all Company property, including but not limited to laptops, mobile phones, access cards, keys, documents, and any other materials in their possession or control.

9. Non-Compete and Non-Solicitation

9.1. **Non-Compete:** For a period of **five (5) years** following the termination of employment for any reason whatsoever, the Employee shall not, directly or indirectly, whether as an employee, consultant, owner, partner, shareholder (other than holding less than 1% of the outstanding shares of a publicly traded company), or in any other capacity, engage in, be employed by, or provide services to any business that is in direct competition with the business of the Company, or whose business involves the development, marketing, or sale of products or services similar to those of the Company, within the geographic territory of India.

9.2. **Non-Solicitation:** During the term of employment and for a period of two (2) years thereafter, the Employee shall not, directly or indirectly, solicit, induce, or attempt to solicit or induce any client, customer, or business associate of the Company with whom the Employee had material contact or whose business was known to the Employee during their employment, to cease or reduce their business relationship with the Company, or to engage in business with a competitor.

9.3. **Non-Solicitation of Employees:** For a period of two (2) years following the termination of employment, the Employee shall not solicit or encourage any employee of the Company to leave their employment with the Company.

10. Employee Conduct and Company Policies

10.1. **Adherence to Policies:** The Employee shall comply with all policies, rules, and regulations of the Company as may be in force from time to time, including the Company's Code of Conduct, IT Security Policy, and HR Policies.

10.2. **Professionalism:** The Employee shall conduct himself with professionalism, integrity, and respect towards colleagues, clients, and stakeholders at all times.

10.3. **Use of Company Resources:** Company resources, including equipment, systems, and facilities, are provided for business purposes only and shall be used responsibly and in accordance with Company policies. The Employee shall not use Company resources for personal gain or illegal activities.

10.4. **Disciplinary Action:** Violation of Company policies or any terms of this Contract may lead to disciplinary action, up to and including termination of employment.

11. Data Privacy and Monitoring

11.1. **Data Protection:** The Employee shall comply with all applicable data protection laws and regulations in India concerning the handling of personal and sensitive data.

11.2. **Monitoring and Surveillance:** The Employee agrees to the Company's right to monitor and record communications and activities on Company systems, networks, and devices, as detailed in Clause 2.4. This monitoring is conducted to ensure compliance with policies, protect Company assets, and maintain operational efficiency. The Employee waives any expectation of privacy concerning activities conducted using Company resources or during working hours.

12. Liability, Indemnity, and Penalties

12.1. **Liability:** The Employee shall be held responsible for any direct losses, damages, liabilities, costs, and expenses (including reasonable legal fees) incurred by the Company as a result of the Employee's breach of this Contract, gross negligence, willful misconduct, fraud, or violation of applicable laws or Company policies.

12.2. **Indemnity:** The Employee agrees to indemnify and hold harmless the Company, its directors, officers, and employees from and against any and all claims, demands, suits, liabilities, damages, losses, costs, and expenses arising out of or in connection with any breach of this Contract by the Employee or any wrongful act or omission on the part of the Employee.

12.3. **Penalties:** In addition to any other remedies available to the Company, the Employee acknowledges and agrees that the penalties specified in Clause 8.2 (Resignation) and any other penalties stipulated elsewhere in this Contract shall be applicable.

13. Force Majeure

13.1. Neither Party shall be liable for any failure or delay in the performance of its obligations under this Contract if such failure or delay is due to circumstances beyond its reasonable control, including but not limited to acts of God, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, accidents, strikes, or shortages of transportation, facilities, fuel, energy, labor, or materials (each a “Force Majeure Event”). The affected Party shall promptly

notify the other Party of the occurrence of a Force Majeure Event and shall use reasonable efforts to mitigate its effects.

14. Entire Agreement

14.1. This Contract constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written, of the Parties. No representation, warranty, covenant, or undertaking made by one Party to the other shall be binding unless it is expressly incorporated in this Contract.

15. Amendments and Waivers

15.1. **Amendments:** No amendment, modification, or waiver of any provision of this Contract shall be effective unless it is in writing and signed by authorized representatives of both Parties.

15.2. **Waivers:** The failure of either Party to enforce any right or provision of this Contract shall not constitute a waiver of future enforcement of that right or provision or any other right or provision.

16. Severability

16.1. If any provision of this Contract is held to be invalid, illegal, or unenforceable, the validity, legality, and enforceability of the remaining provisions shall not in any way be affected or impaired thereby. The Parties shall negotiate in good faith to replace any such invalid, illegal, or unenforceable provision with a valid, legal, and enforceable provision that most closely achieves the intended economic effect of the original provision.

17. Governing Law and Dispute Resolution

17.1. **Governing Law:** This Contract shall be governed by, and construed in accordance with, the laws of India, without regard to its conflict of laws principles.

17.2. **Jurisdiction:** The Parties agree that any legal action or proceeding arising out of or relating to this Contract shall be brought exclusively in the competent courts located in Bangalore, India, and each Party hereby irrevocably submits to the jurisdiction of such courts.

17.3. **Dispute Resolution:** In the event of any dispute arising out of or in connection with this Contract, the Parties shall first attempt to resolve the dispute amicably through good faith negotiations. If the dispute cannot be resolved within thirty (30) days, it shall be subject to the exclusive jurisdiction of the courts as specified in Clause 17.2.

IN WITNESS WHEREOF, the Parties hereto have executed this Contract as of the Effective Date.

For and on behalf of Sunrise DataWorks Pvt. Ltd.:

_____ [Name of Authorized Signatory] [Title of Authorized Signatory]

Accepted and Agreed by:

_____ Rohit Malhotra Employee